

9:00 A.M.

Calendar Line # 1

Case Name Brian Claire vs Manuel Groto et al

Case No. 23CV411676

Motion to Set Aside Default/Judgment

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On February 14, 2023, Plaintiff Brian Claire filed a Complaint alleging eight causes of actions arising from a wrongful eviction case against Xin Huang aka Thomas Huang, Manuel Groto, Joe Paigly, Mark Dehart, Tanya Demaria, and DOES 1 through 20 (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 15, 2024, Plaintiff filed an entry of default against Defendant Xin Huang aka Thomas Huang (“Huang”). On March 19, 2025, Plaintiff filed a Court Judgment for default against Defendant Huang for \$292,405.25 that was not entered as no judgment was provided. Defendant Huang filed an opposition to the entry of judgment on March 21, 2025. Plaintiff resubmitted a default judgment on May 1, 2025 and on November 18, 2025 filed an application for default judgment. The Honorable Roberta Hayashi took the matter under submission on November 24, 2025, and on December 12, 2025, ordered default judgment in the total amount of \$195,103.39 in favor of the Plaintiff and against Defendant Huang.

On March 10, 2026, Defendant Huang filed a motion to set aside and vacate the default judgment entered against him on April 15, 2024. On September 11, 2025, the Honorable Shella Deen denied the motion as untimely and failure to meet his burden. Defendant Huang then filed a motion for reconsideration that was continued July 13, 2026 at 1:30 p.m. in Department 18. After the hearing, the Honorable Shella Deen denied Defendant Huang’s motion for reconsideration.

C. PRESENT MOTION

On July 21, 2026, Defendant Huang filed another motion to set aside and vacate the default judgment. The motion was accompanied by a proof of service indicating electronic mail service to Plaintiff’s counsel on that same day.

Plaintiff opposes the motion and filed opposition papers on August 19, 2026.

On August 25, 2026, Defendant Huang filed a reply to Plaintiff’s opposition.

The Court has carefully reviewed the following: Defendant Huang’s motion, including a notice, Declaration of Thomas Huang, and memorandum of points and authorities (totaling 16 pages); Defendant Huang’s Index of Exhibits and attached Exhibits A- J (totaling 49 pages); Plaintiff’s opposition (totaling 10 pages); Defendant’s reply brief titled “opposition to plaintiff attorney’s memorandum of points and authorities filed on 8/19/2026” (totaling 6 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 1008, a non-prevailing party may make a motion to reconsider and enter a different order under the following conditions: (1) brought before the same judge that made the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order (extended under Code of Civ. Proc., § 1013 for type of service); (3) based on new or different facts, circumstances

or law than those before the court at the time of the original ruling; (4) supported by a declaration stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist; and (5) the motion must be made and decided before entry of judgment. (Code of Civ. Proc., § 1008).

A motion for reconsideration must be made to the same judge. (Code of Civ. Proc., § 1008(a)). “A trial court’s discretion to reconsider another judge’s prior ruling is necessarily narrow and usually only appropriate when the prior judge is unavailable.” (*Marriage of Oliverez* (2015) 238 Cal.App.4th 1242, 1247). “[O]ne trial court judge may not reconsider and overrule a ruling by another trial court judge, unless the first judge is unavailable.” (*Davcon, Inc. v. Roberts & Morgan* (2003) 110 Cal.App.4th 1355, 1361).

“To be entitled to reconsideration, a party should show that (1) evidence of new or different facts exist, and (2) the party has a satisfactory explanation for failing to produce such evidence at an earlier time.” (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342). The moving party must demonstrate that such newly discovered evidence could not, with reasonable diligence, have previously discovered and produced. (*Wilcox v. Ford* (1988) 206 Cal.App.3d 1170). The legislature intended to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500).

“No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.” (Code of Civ. Proc., § 1008(e)); see also, *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1577 [“The name of a motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration under Code of Civil Procedure section 1008.”]]. Therefore, the moving party must comply with the requirements of section 1008, regardless of the title of the noticed motion.

Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling because this is not a “new” or “different” matter. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500).

III. ANALYSIS

Here, Defendant Huang fails to comply with Code of Civil Procedure section 1008, which sets forth the procedures for setting up a motion for reconsideration. On July 13, 2026, the Honorable Shella Deen heard and denied the motion for reconsideration. This stems from Judge Deen’s September 11, 2025 order, denying Defendant Huang’s motion to set aside and vacate the default judgment under Code of Civil Procedure 473(b) et al. Code of Civil Procedure requires that this motion be brought before the same judge that made the order sought to be reconsidered (Code of Civ. Proc., § 1008). Defendant Huang does not offer any new or different facts or circumstances that support a rehearing of the issue. Defendant Huang was afforded multiple opportunities to explain this request.

IV. CONCLUSION

Based on the foregoing, the motion for reconsideration is DENIED.

The Court will prepare the formal Order.

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Calendar Line # 3
Case Name James Bodwin vs Persimmons, Inc. et al
Case No. 24CV438701
Motion for Sanctions I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND On May 9, 2024, Plaintiff/Cross-Defendants James Bodwin (“Bodwin”) filed a Complaint against Defendants/ Cross-Complainants Valerie Chan, Eugene Feinberg, and Persimmons, Inc. (collectively “Defendants/ Cross-Complainants”) asserting thirteen causes of actions: (1) Breach of Contract [against defendant Persimmons]; (2) Fraudulent Inducement; (3) Wrongful Termination in Violation of Labor Code §1102.5; (4) Retaliation and Wrongful Termination in Violation of Public Policy; (5) Negligent Misrepresentation; (6) Breach of Fiduciary Duty; (7) Aiding and Abetting Breach of Fiduciary Duty; (8) Breach of Loyalty; (9) Unjust Enrichment; (10) Accounting; (11) Fraud; (12) Unfair Business Practices in Violation of Bus. & Prof. Code §17200 et seq.; and (13) Declaratory and Injunctive Relief. B. RELEVANT PROCEDURAL BACKGROUND On November 10, 2025, Defendant Persimmons filed a motion for judgment on the pleadings directed at the first cause of action, breach of contract. On May 5, 2026, after hearing the motion, the court denied Defendant Permissions motion for judgment on the pleadings. On April 10, 2026 Defendants filed a motion for summary judgment that was heard on July 2, 2026 before the Honorable Socrates Manoukian. After the hearing, the court took the matter under submission. On July 7, 2026, Judge Manoukian issued an order granting Defendant’s motion for summary adjudication of the first, sixth, seventh, and eight causes of action, and denying motion for summary adjudication of the second, fifth, eleventh, and thirteenth causes of action. C. PRESENT MOTION Before the court is Defendant/ Cross-Complainant Persimmons motion seeking sanctions against Plaintiff/Cross-Defendant Bodwin and Plaintiff’s counsel under Code of Civil Procedure section 128.7, for refusing to dismiss the first cause of action, breach of contract. The motion was filed on December 19, 2025. The motion was accompanied by a proof of service indicating electronic service. Notice is proper. Plaintiff filed an Opposition on August 19, 2026. Defendant Persimmons filed a reply brief on August 25, 2026. The Court has carefully reviewed the following: Defendant Persimmons’ notice of motion and memorandum of points and authorities (totaling 15 pages); Declaration of Valerie Chan and attached Exhibits 1-3 (totaling 52 pages); Declaration of John D. Pernick (totaling 2 pages); Plaintiff’s Opposition (totaling 18 pages); Declaration of Micah Jones in support of Plaintiff’s Opposition (totaling 9 pages); Defendant’s Reply brief (totaling 19 pages); proofs of services; and the pleadings. II. <u>LEGAL STANDARD</u> A. CODE OF CIVIL PROCEDURE SECTION 128.7 Pursuant to Code of Civil Procedure section 128.7, a court may impose sanctions on a party or attorney that presents a pleading, petition, motion, or other similar papers in the following circumstances: (1) The document is presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.